



## CHAPTER 29.

An Act to amend the provisions of the Food and Drugs Act, 1938, relating to Milk and Dairies Regulations and other matters connected therewith.

[27th July 1944.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The power of making Milk and Dairies Regulations under section twenty of the principal Act shall, instead of being exercised by the Minister of Health, be exercised jointly by that Minister and the Minister of Agriculture and Fisheries. Amendment of s. 20 of principal Act.

(2) Regulations made under paragraph (a) of subsection (1) of the said section twenty for the registration of dairies, and of persons carrying on or proposing to carry on the trade of dairymen, shall provide—

(a) for the registration by the Minister of Agriculture and Fisheries of dairy farms, and of persons carrying on, or proposing to carry on, the trade of a dairy farmer ;

(b) for the refusal of any such registration by that Minister if in his opinion, having regard to conditions existing at the premises to be registered, the regulations cannot be complied with and the registration should be refused, and for the cancellation of any such registration by that Minister if in his opinion the regulations are not being complied with and the registration should be cancelled.

(3) Any regulations made by virtue of paragraph (b) of the last foregoing subsection shall—

(a) require notice to be given to the person affected of any intention to refuse or cancel the registration, stating the

grounds on which it is alleged that the regulations cannot be or are not being complied with, as the case may be, and his rights of making objections and representations in accordance with the regulations ; .

- (b) enable the said person, within the time prescribed by the regulations (which shall not be less, in the case of a refusal, than twenty-eight days or, in the case of a cancellation, than twenty-one days, from the date of the service of the said notice), to object, in respect of all or any of the grounds stated in the said notice, that the regulations can be or are being complied with, as the case may be ;
- (c) provide for the reference of any such objection to a tribunal constituted in accordance with the regulations ;
- (d) provide for the procedure of the said tribunal, and in particular for entitling the person objecting to appear before the tribunal with any witnesses he desires to call, and to require the tribunal to inspect the premises to which the objections relate ;
- (e) require the said tribunal to determine whether the objections are made out and, if not, on which of the grounds in respect of which they are made they are not made out, and provide that, in the event of a difference of opinion among the members of the tribunal, the determination of the majority of them shall be the determination of the tribunal ;
- (f) require that the determinations of the tribunal shall be reported to the Minister of Agriculture and Fisheries and communicated by him to the person objecting, and provide that the determinations of the tribunal as stated in the report shall, for the purpose of the proposal to refuse or cancel registration, be conclusive evidence of the facts found thereby ;
- (g) enable the said person within the time so prescribed to make representations to the Minister of Agriculture and Fisheries that the registration should not be refused or cancelled on the grounds stated in the notice mentioned in paragraph (a) of this subsection ;
- (h) provide that no registration shall be cancelled—
  - (i) in any case, until the expiration of the prescribed time for making objections or representations under the regulations ;
  - (ii) in a case where an objection is made within that time, until the report of the tribunal thereon has been received and considered by the said Minister ;
  - (iii) in a case where representations are made to the said Minister within that time, until the representations have been considered by him.

(4) Any premises being immediately before the commencement of this Act a dairy farm, and any person then carrying on the trade of a dairy farmer, shall be deemed to have been registered in accordance with Milk and Dairies Regulations by the Minister of Agriculture and Fisheries at the commencement of this Act; and those regulations shall include provision for ascertaining the premises and persons deemed to have been registered as aforesaid and for making consequential adjustments of the register kept by any authority under the said regulations immediately before the commencement of this Act, and may include provision for any matter incidental to or consequential on the foregoing provisions of this subsection.

(5) The power of making regulations under paragraph (b) of subsection (1) of the said section twenty of the principal Act for the inspection of dairies and persons in or about dairies shall include power to make regulations for the inspection of cattle on dairy farms.

(6) The power of making regulations under paragraph (h) of the said subsection (1) regulating the conveyance and distribution of milk shall include power to make regulations regulating the storage of milk.

2.—(1) Regulations made under subsection (1) of section twenty-one of the principal Act (which relates to special designations in connection with milk) shall cease to be contained in Milk and Dairies Regulations, and shall be separate regulations, which shall be called Milk (Special Designation) Regulations. s. 21 of principal Act.

(2) The power of making Milk (Special Designation) Regulations shall, in so far as the regulations relate to raw milk, be exercised jointly by the Minister of Health and the Minister of Agriculture and Fisheries, instead of being exercised by the Minister of Health; and accordingly any designation prescribed under paragraph (a) of the said subsection (1) in relation to raw milk of any description shall be such as those Ministers consider appropriate.

(3) Regulations made under paragraph (b) of the said subsection (1) shall provide, as respects any special designation of raw milk, for the granting by the Minister of Agriculture and Fisheries, instead of by the Minister of Health or county councils or local authorities, of licences to producers of raw milk authorising the use of that special designation.

3. Section twenty-two of the principal Act (which provides for the refusal or cancellation of the registration of persons who apply to be or are registered as retail purveyors of milk) shall extend to all persons who apply to be or are registered in pursuance of Milk and Dairies Regulations by an authority other than the Minister of Agriculture and Fisheries, whether as retail purveyors of milk or not; and accordingly that section shall have effect as set out in the Schedule to this Act. s. 22 of principal Act.

Consequential  
and supple-  
mentary  
amendments.

4.—(1) The power of a county council or local authority under subsection (3) of section sixty-five of the principal Act to institute proceedings under any regulation made under that Act shall not include power to institute proceedings against any person for contravening or failing to comply with Milk and Dairies Regulations in respect of a dairy farm or in respect of the registration of persons carrying on or proposing to carry on the trade of a dairy farmer.

(2) Section ninety-two of the principal Act (which contains supplementary provisions as to Milk and Dairies Regulations and other regulations) shall apply to Milk (Special Designation) Regulations as it applies to Milk and Dairies Regulations but, in its application to Milk (Special Designation) Regulations and Milk and Dairies Regulations, shall have effect subject to the following modifications :—

(a) references to the Minister in subsections (2) and (4) shall, in relation to any Milk (Special Designation) Regulations relating to raw milk and in relation to any Milk and Dairies Regulations, be construed as references to the Minister of Health and the Minister of Agriculture and Fisheries ;

(b) subsection (3) (which requires the regulations to specify the authorities by whom they are to be enforced and executed) shall not apply to the enforcement or execution of Milk and Dairies Regulations in respect of dairy farms or in respect of the registration of persons carrying on or proposing to carry on the trade of a dairy farmer, or to the enforcement or execution of Milk (Special Designation) Regulations in respect of the use of a special designation of raw milk by a producer of such milk.

(3) Milk and Dairies Regulations shall provide for the constitution of a central committee, and of county committees for the several administrative counties, to keep under review the operation and administration of Milk and Dairies Regulations and Milk (Special Designation) Regulations and to make recommendations with respect thereto, in the case of the central committee, to the Minister of Agriculture and Fisheries and, in the case of a county committee, to the central committee.

Compensation  
to displaced  
officers.

5.—(1) If, in consequence of the passing of this Act or of anything done in pursuance thereof, any officer or servant of a local authority, being a county council or a local authority within the meaning of the principal Act, suffers any direct pecuniary loss by reason of the determination of his appointment or the diminution of his emoluments, he shall be entitled to recover compensation for that loss from that authority :

Provided that no person shall, by virtue of this section, be entitled to recover compensation for any loss if provision is made for compensating him for that loss by or under any other enactment which is for the time being in force.

(2) For the purposes of this section, an officer or servant—

- (a) who at any time during the period of five years from the date of the commencement of this Act, relinquishes his office by reason of his having been required to perform duties which are not analogous to, or which are an unreasonable addition to, those which he was required to perform immediately before that date; or
- (b) whose appointment is determined or whose emoluments are reduced during the period aforesaid because his services are not required or his duties are diminished (no misconduct being established);

shall be deemed, unless the contrary is shown, to have suffered direct pecuniary loss by reason of the determination of his appointment or the diminution of his emoluments in consequence of the passing of this Act or of something done in pursuance thereof.

(3) The provisions of the Fourth Schedule to the Local Government Act, 1933, shall have effect in relation to claims for compensation under this section subject to the following modifications, that is to say :—

- (a) references in that Schedule to a scheme or order shall be construed as references to this Act; and
- (b) any period during which a person has been engaged in war service shall be reckoned for the purposes of that Schedule as a period of service in his office as therein defined and where any such period is so reckoned his emoluments during that period shall, for the purposes of sub-paragraph (2) of paragraph 4 of the said Schedule, be deemed to be such as he would have received if he had not been engaged in war service.

(4) In this section the expression “ emoluments ” has the same meaning as in the Local Government Act, 1933.

6.—(1) Where a person becomes, within twelve months from the commencement of this Act, a civil servant on the staff of the Ministry of Agriculture and Fisheries,—

- (a) having been, immediately before he became such a civil servant, a pensionable officer of a local authority; and
- (b) having been employed by that authority, immediately before the commencement of this Act, in connection with the enforcement or execution of Milk and Dairies Regulations or Milk (Special Designation) Regulations;

then—

- (i) that authority shall, within three months after his becoming a civil servant, give to the Minister of Agriculture and

25 & 26 Geo. 5.  
c. 23.

Fisheries full information as to his previous service, the amount of his emoluments which will be pensionable emoluments for the purposes of the rules made under section nine of the Superannuation Act, 1935 (which relates to the superannuation of transferred officers), and the amount of the superannuation allowance which he may become entitled to receive from the authority; and

- (ii) if the said rules do not already apply to that authority, those rules shall nevertheless apply in relation to him as if the Treasury, upon the application of the authority, had directed that the rules should apply to the authority.

(2) Where a person to whom subsection (1) of this section does not apply becomes, within twelve months from the commencement of this Act or such further period as the Treasury may approve, a civil servant on the staff of the Ministry of Agriculture and Fisheries,—

2 & 3 Geo. 6.  
c. 94.

- (a) having been, within three months before he became such a civil servant, a person engaged in war service in respect of whom a local authority was required or authorised to pay contributions for superannuation purposes under section four of the Local Government Staffs (War Service) Act, 1939; and
- (b) having been employed by that authority, immediately before he became engaged in war service, in connection with the enforcement or execution of the regulations aforesaid;

then—

- (i) the rules made under the said section nine shall apply in relation to him as if he had been a pensionable officer of that authority immediately before he became a civil servant; and
  - (ii) paragraphs (i) and (ii) of subsection (1) of this section shall apply in relation to him and in relation to that authority as they apply for the purposes of subsection (1) of this section.
- (3) In this section—
- (a) the expression “local authority” means a county council or local authority within the meaning of the principal Act;
  - (b) the expression “pensionable officer”, in relation to a local authority, means an officer or servant of that authority who is a pensionable officer or servant of the authority within the meaning of section nine of the Superannuation Act, 1935;
  - (c) the expression “civil servant” has the meaning assigned to it by section twelve of the Superannuation Act, 1887.

50 & 51 Vict.  
c. 67.

7. Any expenses incurred by the Minister of Agriculture and Fisheries under this Act shall be defrayed out of moneys provided by Parliament. Expenses of  
Minister of  
Agriculture  
and Fisheries.

8.—(1) In this Act the following expressions have the meanings respectively assigned to them— Interpretation.

“dairy farm” means any farm, cowshed or other premises being a dairy within the meaning of the principal Act on which milk is produced from cows, but does not include any part of any such farm or premises on which milk is manufactured into other products unless the milk produced on the farm or premises forms a substantial part of the milk so manufactured ;

“dairy farmer” means a dairyman within the meaning of the principal Act who produces milk from cows ;

“principal Act” means the Food and Drugs Act, 1938 ; 1 & 2 Geo. 6.  
c. 56.

“raw milk” means milk which has not been treated by heat ;

“war service” has the same meaning as in the Local Government Staffs (War Service) Act, 1939.

(2) If any question arises whether the milk produced on a farm or other premises forms a substantial part of the milk that is manufactured into other products thereon, that question shall be determined by the Minister of Agriculture and Fisheries.

9.—(1) This Act may be cited as the Food and Drugs (Milk and Dairies) Act, 1944, and may be cited together with the principal Act as the Food and Drugs Acts, 1938 and 1944. Short title,  
citation,  
and  
commence-  
ment.

(2) This Act shall come into operation on such day as the Minister of Health may by order appoint.

## Section 3.

**SCHEDULE.**  

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**SECTION 22 OF PRINCIPAL ACT AS AMENDED BY THIS ACT.**

Power to  
refuse or cancel  
registration of  
dairymen.

22.—(1) If it appears to an authority by whom dairymen are registered in pursuance of Milk and Dairies Regulations, other than the Minister of Agriculture and Fisheries, that the public health is, or is likely to be, endangered by any act or default of a person who has applied to be, or is, so registered by the authority, being an act or default, committed whether within or without the district of the authority, in relation to the quality, storage or distribution of milk, they shall serve on him a notice—

- (a) stating the place and time, not being less than seven days after the date of the service of the notice, at which they propose to take the matter into consideration ; and
- (b) informing him that he may attend before them, with any witnesses whom he desires to call, at the place and time mentioned to show cause why they should not, for reasons specified in the notice, refuse to register him or cancel his registration, as the case may be, either generally or in respect of any specified premises.

(2) If a person on whom a notice is served under the preceding subsection fails to show cause to the satisfaction of the authority, they may refuse to register him or cancel his registration, as the case may be, and shall forthwith give notice to him of their decision in the matter, and shall, if so required by him within fourteen days of their decision, give to him within forty-eight hours a statement of the grounds on which it was based.

(3) A person aggrieved by the decision of an authority under this section to refuse to register him, or to cancel his registration, may appeal to a court of summary jurisdiction.

(4) The court before which a person registered as a dairyman otherwise than by the Minister of Agriculture and Fisheries is convicted of an offence under any of the provisions of this Act relating to milk, or under any Milk and Dairies Regulations may, in addition to any other penalty, cancel his registration as such.

(5) An authority other than the Minister of Agriculture and Fisheries may require a person who applies to them for registration as a dairyman to give to them, before his application is considered, information as to whether he is, or has been, registered as a dairyman, whether by them or the Minister of Agriculture and Fisheries or some other



authority, and if an applicant who is so required gives to the authority any information which is false in any material respect, he shall be guilty of an offence.

(6) Where under this section a person's application for registration is refused, or his registration is cancelled, he shall not be liable for any breach of a contract for the purchase of further supplies of milk from another person, if such refusal or cancellation was due to the quality of the milk supplied by that person.

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